



HERITAGE & OPPORTUNITY ALLIANCE, INC.

COMPREHENSIVE BYLAWS

Florida Not-for-Profit Corporation

Board Governance • Programs • Financial Controls • Community
Accountability

Prepared for Board Review and Adoption



BOARD REVIEW NOTICE

BOARD DRAFT FOR REVIEW AND ADOPTION. These bylaws are tailored to Heritage and Opportunity Alliance, Inc. as a Florida not-for-profit corporation pursuing recognition under Internal Revenue Code Section 501(c)(3). They are not a substitute for advice from a Florida nonprofit attorney or qualified tax professional. These bylaws do not amend the corporation's Articles of Incorporation. Before submitting Form 1023 or 1023-EZ, the corporation should ensure its Articles contain the IRS-required limitations and dissolution provisions.



TABLE OF CONTENTS

ARTICLE I - NAME, STATUS, OFFICES, AND GOVERNING AUTHORITY

ARTICLE II - CHARITABLE PURPOSES AND MISSION

ARTICLE III - SECTION 501(c)(3) LIMITATIONS

ARTICLE IV - NONMEMBERSHIP CORPORATION

ARTICLE V - BOARD OF DIRECTORS: AUTHORITY AND COMPOSITION

ARTICLE VI - DIRECTOR QUALIFICATIONS, TERMS, ELECTION, VACANCIES, AND REMOVAL

ARTICLE VII - BOARD MEETINGS, NOTICE, QUORUM, AND VOTING

ARTICLE VIII - OFFICERS

ARTICLE IX - FOUNDER AND EXECUTIVE LEADERSHIP

ARTICLE X - COMMITTEES, ADVISORY BODIES, AND LOCAL INITIATIVES

ARTICLE XI - PROGRAM GOVERNANCE AND COMMUNITY BENEFIT

ARTICLE XII - FINANCIAL ADMINISTRATION AND INTERNAL CONTROLS

ARTICLE XIII - COMPENSATION, REIMBURSEMENT, AND RELATED-PARTY TRANSACTIONS

ARTICLE XIV - CONFLICTS OF INTEREST AND ETHICS

ARTICLE XV - RECORDS, TRANSPARENCY, PRIVACY, AND CONFIDENTIALITY

ARTICLE XVI - YOUTH SAFETY, VOLUNTEERS, AND PROGRAM RISK

ARTICLE XVII - PARTNERSHIPS, FISCAL SPONSORSHIPS, FUNDRAISING, AND BRAND AUTHORITY

ARTICLE XVIII - PUBLIC COMMUNICATIONS, CIVIC ENGAGEMENT, AND ADVOCACY

ARTICLE XIX - REAL PROPERTY, COMMUNITY LAND STEWARDSHIP, AND COMMUNITY LAND TRUST ACTIVITIES

ARTICLE XX - INDEMNIFICATION, INSURANCE, AND EMERGENCY GOVERNANCE

ARTICLE XXI - AMENDMENTS, DISSOLUTION, SEVERABILITY, AND ADOPTION

EXHIBIT A - INITIAL SIX-DIRECTOR BOARD STRUCTURE

EXHIBIT B - BOARD ADOPTION RESOLUTION

EXHIBIT C - DIRECTOR SIGNATURES AND SECRETARY CERTIFICATION

APPENDIX - DRAFTING AUTHORITY AND COMPLIANCE NOTES



ARTICLE I - NAME, STATUS, OFFICES, AND GOVERNING AUTHORITY

Section 1.1 - Legal Name.

The legal name of the corporation is HERITAGE AND OPPORTUNITY ALLIANCE, INC. The corporation may use the public-facing name Heritage & Opportunity Alliance, the acronym HOA, and Board-approved program, initiative, chapter, or campaign names in communications, provided that such use does not create a separate legal entity or imply authority not granted by the Board of Directors.

Section 1.2 - Corporate Status.

The corporation is a Florida corporation not for profit organized under Chapter 617, Florida Statutes. The corporation shall seek and maintain recognition as a public charity exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax law.

Section 1.3 - Principal Office.

The principal office shall be located in Florida at an address approved by the Board. The Board may change the principal office, mailing address, registered office, or registered agent as permitted by law. The corporation may maintain additional program or administrative locations approved by the Board.

Section 1.4 - Governing Documents.

The corporation shall be governed by its Articles of Incorporation, these Bylaws, Board resolutions, adopted policies, and applicable federal, state, and local law. If a conflict exists, controlling law shall prevail, followed by the Articles of Incorporation, these Bylaws, and then Board-adopted policies and resolutions.

Section 1.5 - Fiscal Year.

The fiscal year shall be the calendar year, January 1 through December 31, unless changed by resolution of the Board.

ARTICLE II - CHARITABLE PURPOSES AND MISSION

Section 2.1 - Exclusive Exempt Purposes.

The corporation is organized and shall be operated exclusively for charitable, educational, cultural, literary, civic, historic-preservation, health-promotion, youth-development, housing-stability, workforce-development, economic-opportunity, community-development, and related exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code.

Section 2.2 - Mission.

The mission of the corporation is to organize residents, preserve community identity, connect people to resources and opportunities, and help ensure that public and private investment creates measurable benefits for historically impacted communities, especially East Stuart.



Section 2.3 - Program Purposes.

The corporation may carry out its mission through resident resource navigation; community support and referral clinics; housing-stability and homeowner education; heirs' property and probate-awareness education; youth leadership, mentorship, arts, athletics-based development, and volunteer engagement; workforce, skilled-trades, aviation, technical-career, and job-readiness pathways; entrepreneurship, small-business, vendor, artist, and microenterprise readiness; historic preservation, oral history, cultural storytelling, public art, murals, and cultural-corridor projects; civic education, resident leadership, nonpartisan public forums, community-benefit tracking, and public accountability; health and wellness education and referral; re-entry and recovery referral; community land stewardship and community land trust planning; and any other lawful charitable or educational activity approved by the Board.

Section 2.4 - Collaboration Rather Than Duplication.

The corporation shall seek to collaborate with qualified public agencies, nonprofits, faith institutions, educational institutions, workforce systems, health and human-service providers, businesses, artists, funders, and community groups when referral, partnership, or coordinated access is more appropriate than duplicating an existing service.

ARTICLE III - SECTION 501(c)(3) LIMITATIONS

Section 3.1 - No Private Inurement.

No part of the net earnings of the corporation shall inure to the benefit of, or be distributable to, any director, officer, founder, employee, member, private shareholder, or other private individual, except that the corporation may pay reasonable compensation for services actually rendered, reimburse properly documented expenses, and make payments or distributions in furtherance of its exempt purposes.

Section 3.2 - Private Benefit.

The corporation shall not be organized or operated for the private benefit of any insider, related party, donor, contractor, partner, business, or non-exempt organization. Any incidental private benefit must be necessary to, and no more than incidental to, achievement of the corporation's charitable purposes.

Section 3.3 - Political Campaign Activity.

The corporation shall not participate or intervene, directly or indirectly, in any political campaign on behalf of or in opposition to any candidate for public office. The corporation may conduct nonpartisan civic education, voter education, candidate forums, public-issue education, and community discussions only when structured and administered in a neutral, nonpartisan manner consistent with federal law and Board policy.

Section 3.4 - Lobbying.

No substantial part of the activities of the corporation shall consist of carrying on propaganda or otherwise attempting to influence legislation, except to the extent permitted for an organization exempt under Section 501(c)(3). The Board may authorize lawful advocacy, public education, or an election under Section 501(h) after appropriate legal or tax review.



Section 3.5 - Prohibited Activities.

Notwithstanding any other provision of these Bylaws, the corporation shall not carry on any activity not permitted to be carried on by an organization exempt under Section 501(c)(3), or by an organization contributions to which are deductible under applicable provisions of the Internal Revenue Code.

ARTICLE IV - NONMEMBERSHIP CORPORATION

Section 4.1 - No Statutory Voting Members.

The corporation shall have no statutory members with voting rights under Chapter 617, Florida Statutes. All corporate voting authority shall be vested in the Board of Directors.

Section 4.2 - Community Participation.

The corporation may recognize community participants, supporters, volunteers, advisory members, committee members, program participants, donors, or affiliates. Such persons do not possess corporate voting rights, ownership interests, or authority to bind the corporation unless separately elected as directors or expressly authorized in writing by the Board.

ARTICLE V - BOARD OF DIRECTORS: AUTHORITY AND COMPOSITION

Section 5.1 - Governing Authority.

The Board of Directors is the governing body of the corporation and has full fiduciary authority over mission, strategy, programs, budgets, assets, banking, grants, fundraising, contracts, partnerships, personnel, compensation, litigation, insurance, risk management, policies, public positions, and legal compliance.

Section 5.2 - Initial Number of Directors.

The Board shall initially consist of six voting directors. By a two-thirds vote of the directors then in office, the Board may increase or decrease the authorized number to not fewer than five and not more than nine directors, provided that the corporation shall never have fewer than three directors and no decrease shall shorten an incumbent director's term.

Section 5.3 - Independence and Community Representation.

The Board shall seek a balanced mix of community trust, lived experience, financial oversight, nonprofit governance, education, housing, youth development, workforce, preservation, business, arts, legal, and public-service expertise. The Board shall strive to maintain a majority of directors who are independent and not related to one another by blood, marriage, domestic partnership, or material business control.

Section 5.4 - No Ownership Interest.

No director, officer, founder, donor, or other person owns the corporation or has a transferable interest in its assets, programs, name, goodwill, grant identity, donor relationships, or charitable status.



Section 5.5 - Reserved Board Powers.

Only the Board may adopt or amend Bylaws; elect or remove directors and officers; approve annual budgets; authorize debt, guarantees, real-estate transactions, or bank accounts; approve compensation arrangements with insiders; create or dissolve affiliated entities; approve fiscal sponsorships, mergers, or dissolution; authorize litigation; or delegate authority to bind the corporation.

ARTICLE VI - DIRECTOR QUALIFICATIONS, TERMS, ELECTION, VACANCIES, AND REMOVAL

Section 6.1 - Qualifications.

A director must be at least eighteen years old, support the mission, be willing to perform fiduciary duties, attend meetings, protect confidential information, complete required disclosures, and comply with the Articles, Bylaws, policies, and Board decisions. A director assigned to youth-facing work must comply with applicable screening, supervision, and safety requirements.

Section 6.2 - Election.

Directors shall be elected by the affirmative vote of a majority of the directors then in office at the annual meeting or at another duly noticed meeting. The Board may use an application, interview, reference, background, conflict, or qualification review process before election.

Section 6.3 - Terms.

Directors shall serve two-year terms and may serve up to three consecutive full terms. After at least one year off the Board, a former director may be considered for election again. To establish staggered terms, the initial Board may assign three directors to an initial one-year term and three directors to an initial two-year term; thereafter, all regular terms shall be two years.

Section 6.4 - Holdover.

A director shall continue to serve until a successor is elected and qualified, unless the director resigns, is removed, becomes disqualified, or dies.

Section 6.5 - Resignation.

A director may resign at any time by written notice to the President or Secretary. The resignation is effective when received unless a later date is stated.

Section 6.6 - Vacancies.

A vacancy may be filled by the affirmative vote of a majority of the remaining directors, even if fewer than a quorum remain. A director elected to fill a vacancy shall serve the remainder of the unexpired term.



Section 6.7 - Removal.

A director may be removed with or without cause by the affirmative vote of two-thirds of the directors then in office, excluding the director whose removal is proposed, after written notice identifying the proposed removal and a reasonable opportunity for the director to respond. Grounds supporting removal may include repeated unexcused absence, breach of fiduciary duty, misuse of funds or confidential information, unauthorized public representation, failure to disclose conflicts, conduct materially harmful to the corporation, or refusal to return corporate records or property.

Section 6.8 - Attendance.

Three unexcused absences from regular Board meetings within any rolling twelve-month period may constitute grounds for removal. The Board shall consider emergencies, health, work, caregiving, and other reasonable circumstances.

Section 6.9 - Return of Records and Property.

A departing or removed director shall promptly return all corporate records, passwords, devices, funds, checks, cards, keys, files, donor or resident information, and other corporate property, and shall cease representing the corporation.

ARTICLE VII - BOARD MEETINGS, NOTICE, QUORUM, AND VOTING

Section 7.1 - Annual Meeting.

The Board shall hold an annual meeting during the first four months of each fiscal year to review mission performance, elect directors and officers as needed, approve or confirm the annual budget, review conflicts, review policies, and establish priorities.

Section 7.2 - Regular Meetings.

The Board shall meet at least six times each year on a schedule adopted by resolution. Regular meetings may be held without additional notice when the schedule has been distributed to all directors.

Section 7.3 - Special Meetings.

A special meeting may be called by the President, the Vice President, the Secretary, or any two directors. At least two days' notice of the date, time, and place or communication method shall be provided unless an emergency makes shorter notice reasonable. The purpose shall be included when practicable and must be included for removal, Bylaw amendments, major real-estate transactions, or dissolution.

Section 7.4 - Remote Participation.

The Board or any committee may conduct meetings through telephone, video conference, or other communication methods by which all participants can simultaneously hear one another. Participation through such means constitutes presence in person.

Section 7.5 - Quorum.

A quorum consists of a majority of the directors then in office, but never fewer than three. With six directors in office, four directors constitute a quorum.

Section 7.6 - Voting.

Each director has one vote. Proxy voting is prohibited. Unless a greater vote is required by law, the Articles, or these Bylaws, an action is approved by a majority of directors present at a meeting where a quorum exists. A tie vote fails.



Section 7.7 - Higher-Vote Matters.

A two-thirds vote of directors then in office is required to amend these Bylaws; change the authorized Board size; remove a director; approve compensation or a material contract involving a director, officer, founder, or related party; authorize the acquisition, sale, mortgage, or long-term lease of real property; create or dissolve an affiliated entity; approve a merger; or recommend dissolution.

Section 7.8 - Written Consent Without Meeting.

Any action permitted at a Board or committee meeting may be taken without a meeting only by unanimous written consent of all directors or committee members entitled to vote on the action. Electronic signatures and written electronic consents are permitted when retained with the corporate records.

Section 7.9 - Minutes.

The Secretary shall ensure that minutes record attendance, motions, votes, recusals, conflicts, executive sessions, decisions, and assigned follow-up. Draft minutes shall be circulated and approved by the Board.

Section 7.10 - Executive Session.

The Board may enter executive session for confidential matters such as legal advice, personnel, investigations, sensitive resident information, negotiations, security, or litigation. Decisions requiring Board action shall be recorded appropriately while protecting confidential details.

ARTICLE VIII - OFFICERS

Section 8.1 - Required Officers.

The officers shall be a President/Board Chair, Vice President/Vice Chair, Secretary, and Treasurer. The Board may create additional officer or director-portfolio positions, including an Assistant Secretary, Assistant Treasurer, At-Large Director, Youth Coordinator, Community Development Director, Heritage Director, or Program Director.

Section 8.2 - Election and Terms.

Officers shall be elected by the Board for one-year terms and may be reelected. An officer serves until a successor is elected, unless the officer resigns, is removed, or ceases to be a director when Board membership is required for that office.

Section 8.3 - President/Board Chair.

The President/Chair shall lead Board governance, preside at meetings, support agenda development, help ensure implementation of Board decisions, serve as an authorized public representative within Board policy, and perform other duties assigned by the Board. The President/Chair has no extra vote and no authority to override the Board.

Section 8.4 - Vice President/Vice Chair.

The Vice President/Vice Chair shall perform the President's duties when the President is unavailable, support committee coordination and succession readiness, and carry out duties assigned by the Board.



Section 8.5 - Secretary.

The Secretary shall maintain or oversee the Articles, Bylaws, minutes, resolutions, notices, policies, rosters, committee reports, annual reports, contracts, official correspondence, and corporate record system; certify Board actions when required; and ensure that official records are transferred to the corporation rather than retained only by an individual.

Section 8.6 - Treasurer.

The Treasurer shall oversee budgets, bank reconciliations, financial statements, deposits, disbursements, restricted funds, grants, sponsorships, receipts, reimbursements, required tax and financial filings, and reporting to the Board. The Treasurer shall not exercise sole, unchecked control over receiving, approving, paying, and reconciling the same funds.

Section 8.7 - Multiple Offices.

One person may hold more than one office only when permitted by law and approved by the Board; however, the offices of President and Secretary should not be held by the same person, and the President should not serve as Treasurer. The Board shall preserve reasonable separation of financial and recordkeeping duties.

Section 8.8 - Removal and Vacancies.

An officer may be removed from office, with or without cause, by a majority vote of directors then in office. Removal from an officer role does not automatically remove the person from the Board unless the Board separately follows the director-removal procedure. Officer vacancies may be filled by the Board for the remainder of the term.

ARTICLE IX - FOUNDER AND EXECUTIVE LEADERSHIP

Section 9.1 - Founder Status.

The corporation may recognize Kodey Johnson as Founder and Community Organizer. Founder status reflects origin and service but does not create ownership, a lifetime Board seat, a veto, special voting rights, entitlement to compensation, or authority beyond that granted by the Board.

Section 9.2 - Executive Roles.

The Board may appoint an Executive Director, Chief Executive Officer, Lead Organizer, Program Director, or other executive staff or contractors and shall define authority, supervision, compensation, evaluation, and reporting in writing.

Section 9.3 - Board Supervision.

Paid executive leadership is accountable to the Board. No employee or contractor may independently amend mission, control Board appointments, authorize personal compensation, obligate the corporation outside delegated authority, or use corporate funds or opportunities for private purposes.

Section 9.4 - Compensated Directors.

The Board shall strive to limit compensated persons serving as voting directors. No compensated employee shall serve as Treasurer, and no compensated person may participate in decisions concerning that person's compensation or contract.



ARTICLE X - COMMITTEES, ADVISORY BODIES, AND LOCAL INITIATIVES

Section 10.1 - Creation.

By resolution adopted by a majority of the full Board, the Board may create Board committees, advisory committees, local advisory bodies, program councils, working groups, task forces, or chapters. Each shall operate under a written charter or resolution describing purpose, membership, authority, limits, reporting, records, and review dates.

Section 10.2 - Board Committees.

A Board committee exercising delegated Board authority must include at least two directors and may exercise only the authority expressly delegated. No committee may fill Board vacancies, amend the Articles or Bylaws, approve dissolution or merger, or exercise powers reserved to the full Board.

Section 10.3 - Advisory Bodies.

Advisory committees may include residents, elders, youth representatives, professionals, faith leaders, artists, business owners, partners, and other stakeholders. Advisory members may study, recommend, organize, document, and support Board-approved work but may not bind the corporation, spend or accept funds, sign agreements, hire or fire, use the corporation's name or logo, or make official commitments without written authority.

Section 10.4 - Initial Committee Lanes.

The Board may maintain the following initial committee lanes: Heritage, Homeowner Stability and Church Unity; Opportunity, Workforce and Economic Development; and Community Programs, Youth Leadership and Volunteer Operations. The Board may modify, combine, rename, suspend, or dissolve committee lanes by resolution.

Section 10.5 - East Stuart Advisory Committee.

The East Stuart Advisory Committee is authorized as the first local advisory body. Its purpose is to provide structured resident input, issue tracking, outreach support, cultural knowledge, program recommendations, and neighborhood-level feedback. It does not replace the Board and has no independent legal or financial authority.

Section 10.6 - Public Art and Youth Partnership Charters.

The Board may operate a Public Art, Mural and Cultural Corridor Program and a Youth Athletics and Mentorship Partnership Program under Board-approved charters, written permissions, youth-safety requirements, insurance review, artist or partner agreements, and outcome reporting.

ARTICLE XI - PROGRAM GOVERNANCE AND COMMUNITY BENEFIT

Section 11.1 - Board-Approved Programs.

Programs shall be mission-aligned, documented, appropriately supervised, financially authorized, and evaluated. Each significant program shall have a purpose, responsible lead, target population, partners, budget, safety review, data and consent plan, measurable outcomes, and reporting process.



Section 11.2 - No Unauthorized Promises.

No director, officer, committee member, advisor, volunteer, employee, contractor, or partner may promise jobs, grants, housing, repairs, legal outcomes, medical outcomes, public approvals, contracts, scholarships, facility access, athletic participation, or government action on behalf of the corporation unless specifically authorized and factually supportable.

Section 11.3 - Referral Boundaries.

Unless properly licensed and authorized, the corporation shall not represent itself as a legal-services provider, medical provider, mental-health provider, housing agency, employment-placement guarantee, probation or treatment provider, real-estate broker, or public agency. The corporation may provide public education and connect residents to qualified providers.

Section 11.4 - Community Data.

The corporation may collect and analyze community needs, resident priorities, participation, referrals, barriers, and outcomes. Public reporting should use aggregate information unless identifying disclosure is permitted by law and documented consent.

Section 11.5 - Public Benefit Review.

Major partnerships, developments, grants, facility arrangements, and public initiatives may be reviewed through a community-benefit lens, including resident access, outreach, local opportunity, transparency, cultural impact, displacement risk, and measurable outcomes.

ARTICLE XII - FINANCIAL ADMINISTRATION AND INTERNAL CONTROLS

Section 12.1 - Board Oversight.

The Board shall exercise fiduciary oversight over all corporate funds and shall approve an annual budget, authorized bank accounts, signers, financial policies, spending authority, and material deviations from the budget.

Section 12.2 - Bank Accounts.

All funds shall be deposited in accounts held in the legal name of the corporation at insured financial institutions approved by the Board. Organizational funds shall never be commingled with personal funds, partner funds, committee funds, youth-league funds, or funds of another organization.

Section 12.3 - Authorization and Separation of Duties.

The Board shall establish approval thresholds, payment controls, debit-card limits, check-signing rules, electronic payment controls, and reconciliation procedures. Whenever practicable, no single person shall control authorization, custody, payment, and reconciliation of the same transaction.

Section 12.4 - Documentation.

Every expenditure shall be supported by a receipt, invoice, contract, grant term, reimbursement form, or other appropriate record. Cash handling shall be minimized, counted by two persons when practicable, documented, and deposited promptly.



Section 12.5 - Restricted Funds.

Restricted grants, sponsorships, donations, gift cards, and cash equivalents shall be tracked and used only for their authorized charitable purpose. The Board shall not redirect donor-restricted funds without lawful donor or grantor approval.

Section 12.6 - Financial Reporting.

The Treasurer shall provide regular financial reports to the Board, including income, expenses, cash balance, restricted funds, obligations, budget-to-actual performance, and significant risks. The Board shall arrange independent review, compilation, audit, or other financial oversight when required by law, grant terms, Board policy, or organizational scale.

Section 12.7 - Debt and Personal Guarantees.

The corporation shall not incur material debt, pledge assets, or accept a personal guarantee without Board approval, a written repayment plan, disclosure of all risks and conflicts, and confirmation that the transaction serves the corporation's exempt purposes. No person is required to guarantee corporate debt.

Section 12.8 - Loans to Insiders.

The corporation shall not make loans to directors or officers except as expressly permitted by applicable law, and shall not use charitable assets as personal advances.

ARTICLE XIII - COMPENSATION, REIMBURSEMENT, AND RELATED-PARTY TRANSACTIONS

Section 13.1 - Director Service.

Directors shall not be compensated for service as directors. Directors may receive reimbursement for reasonable, necessary, documented expenses incurred on behalf of the corporation under Board policy.

Section 13.2 - Separate Services.

A director, officer, founder, or related person may be paid reasonable compensation for bona fide services separate from Board service only when the arrangement is mission-aligned, documented in advance, supported by appropriate comparability information, approved by disinterested directors, and recorded in the minutes.

Section 13.3 - Recusal.

A person with a financial or personal interest in a compensation or contract decision shall disclose the interest, leave the discussion when requested, not vote, and not attempt to influence the decision.

Section 13.4 - No Percentage Diversion.

Compensation, fundraising fees, sponsorship commissions, or contractor payments shall not be structured to divert charitable assets improperly, create excessive benefit, or reward access to public funds or charitable status.

Section 13.5 - Stipends and Honoraria.

Program stipends, participant supports, honoraria, scholarships, prizes, and emergency assistance must further charitable purposes, use objective and documented criteria, comply with grant restrictions, and avoid favoritism toward insiders.



ARTICLE XIV - CONFLICTS OF INTEREST AND ETHICS

Section 14.1 - Written Policy.

The corporation shall maintain a written conflict-of-interest policy applicable to directors, officers, key employees, committee leaders, and other persons designated by the Board.

Section 14.2 - Annual Disclosure.

Covered persons shall complete an annual disclosure identifying financial interests, family relationships, outside roles, businesses, contracts, property interests, and other circumstances that could create actual, potential, or perceived conflicts.

Section 14.3 - Transaction Review.

A conflict transaction may be approved only after disclosure, recusal, review by disinterested decision-makers, a determination that the arrangement is fair and reasonable to the corporation, and documentation in the minutes. A single disinterested director may not alone approve a conflict transaction.

Section 14.4 - Gifts and Influence.

Directors, officers, staff, and volunteers shall not accept gifts, payments, favors, confidential information, employment promises, or benefits intended to influence corporate decisions. The Board may adopt reasonable de minimis and gift-acceptance standards.

Section 14.5 - Reporting Concerns.

The corporation shall maintain a good-faith method for reporting suspected misuse, retaliation, financial irregularity, safety violations, discrimination, harassment, conflicts, or legal noncompliance. Retaliation for good-faith reporting is prohibited.

ARTICLE XV - RECORDS, TRANSPARENCY, PRIVACY, AND CONFIDENTIALITY

Section 15.1 - Corporate Records.

The corporation shall keep permanent or legally required records of Articles, Bylaws, amendments, Board and committee minutes, written consents, resolutions, policies, director and officer rosters, annual reports, tax filings, financial statements, grants, contracts, insurance, property records, and official correspondence.

Section 15.2 - Record Custody.

The Secretary shall oversee corporate records and the Treasurer shall oversee financial records. No individual, committee, or contractor may keep the only copy of an official corporate record. Records shall be stored in Board-approved systems with appropriate backups and access controls.

Section 15.3 - Inspection and Disclosure.

Records shall be made available as required by law. The Board may also provide public reports, impact summaries, budgets, or policies to strengthen transparency, while protecting attorney-client material, personnel information, donor privacy, youth information, resident data, security details, and other confidential information.



Section 15.4 - Confidentiality.

Persons with access to confidential information shall use it only for authorized purposes and shall not disclose resident, youth, health, property, family, donor, partner, or personnel information without authorization, consent, or legal requirement.

Section 15.5 - Media and Intellectual Property.

Photos, videos, oral histories, family documents, historic images, artwork, logos, stories, recordings, and copyrighted material shall be used only with appropriate permission, releases, licensing, credit, and ownership understanding.

ARTICLE XVI - YOUTH SAFETY, VOLUNTEERS, AND PROGRAM RISK

Section 16.1 - Youth Protection.

Youth-facing activities shall use appropriate adult supervision, parent or guardian permission, emergency contacts, safe transportation practices, facility requirements, incident reporting, appropriate boundaries, and screening or background checks when required by law, insurance, grant terms, or Board policy.

Section 16.2 - No Unsupervised Private Access.

No volunteer, mentor, coach, contractor, or program representative shall have unauthorized unsupervised private access to a minor through a corporation program.

Section 16.3 - Volunteers.

Volunteers shall receive role descriptions, supervision, conduct expectations, confidentiality requirements, safety instructions, and limits of authority. Volunteers are not authorized to bind the corporation or make promises unless expressly delegated.

Section 16.4 - Risk Review.

Before public events, youth programs, athletics-related partnerships, mural work, construction, transportation, food service, health activities, or facility use, the responsible lead shall review insurance, waivers, permits, supervision, equipment, accessibility, emergency plans, and partner responsibilities.

Section 16.5 - Independent Partner Responsibility.

An independent partner remains responsible for its own operations, employees, coaches, facilities, transportation, insurance, waivers, registrations, equipment, and legal compliance unless a written Board-approved agreement expressly provides otherwise.

ARTICLE XVII - PARTNERSHIPS, FISCAL SPONSORSHIPS, FUNDRAISING, AND BRAND AUTHORITY

Section 17.1 - Written Agreements.

Material partnerships, memoranda of understanding, fiscal sponsorships, sponsorships, grants, facility-use arrangements, subleases, data-sharing arrangements, artist agreements, and program collaborations shall be documented in writing and approved at the level required by Board policy.



Section 17.2 - Independence.

Partnerships shall preserve the corporation's independent governance, mission, records, funds, charitable status, public credibility, and decision-making. No partner may control the Board or use the corporation as a pass-through for private or non-charitable benefit.

Section 17.3 - Fiscal Sponsorship.

The corporation may act as, or receive support through, a lawful fiscal sponsor only under a written agreement that defines charitable purpose, discretion and control, fees, reporting, ownership, insurance, fundraising, intellectual property, and termination. The Board shall obtain qualified review before serving as fiscal sponsor for another project.

Section 17.4 - Fundraising Compliance.

The corporation shall accurately describe its state and federal tax status and shall comply with applicable charitable-solicitation, donor-receipting, gaming, alcohol, event, sponsorship, and fundraising laws before conducting the relevant activity.

Section 17.5 - Name, Logo, and Public Identity.

The corporate name, seal, logo, charitable status, bank account, donor list, resident list, volunteer list, grant identity, social-media accounts, and public credibility are corporate assets. No person or partner may use them without authorization. Upon separation, access credentials and branded materials shall be returned or disabled.

ARTICLE XVIII - PUBLIC COMMUNICATIONS, CIVIC ENGAGEMENT, AND ADVOCACY

Section 18.1 - Authorized Spokespersons.

Only persons authorized by the Board or by an officer acting within delegated authority may issue official statements, represent Board positions, speak for the corporation to agencies or media, or commit the corporation publicly.

Section 18.2 - Personal Speech.

Directors, officers, advisors, staff, and volunteers retain personal rights of speech but shall not imply that personal views are official corporate positions. When confusion is reasonably possible, they should identify that they are speaking personally.

Section 18.3 - Nonpartisan Forums.

Candidate forums, civic forums, voter education, and public-issue events shall use written neutral standards, invite qualified participants on a fair basis, avoid endorsements, avoid rating candidates, and provide reasonable balance consistent with Section 501(c)(3).

Section 18.4 - Public Records and Government Engagement.

The corporation may submit public comments, request public records, educate residents, advocate for charitable objectives, and communicate with public officials, provided that activities remain lawful, accurate, mission-aligned, and within applicable limits.



Section 18.5 - Accuracy and Respect.

Public statements shall distinguish verified fact, organizational position, community concern, and personal opinion. The corporation shall avoid knowingly false statements, unauthorized legal conclusions, harassment, threats, retaliation, or disclosure of confidential information.

ARTICLE XIX - REAL PROPERTY, COMMUNITY LAND STEWARDSHIP, AND COMMUNITY LAND TRUST ACTIVITIES

Section 19.1 - Community Land Stewardship Initiative.

The Board may establish an internal Community Land Stewardship or Community Land Trust Initiative for education, planning, resident engagement, anti-displacement strategies, land identification, partnership development, affordable-housing strategy, and grant readiness.

Section 19.2 - Real-Property Approval.

The corporation shall not acquire, sell, lease for more than one year, mortgage, encumber, develop, or accept a donation of real property without approval by two-thirds of directors then in office after appropriate title, survey, appraisal, environmental, zoning, insurance, tax, financial, conflict, and legal review.

Section 19.3 - Separate Affiliated Entity.

Before holding land in perpetuity, issuing long-term ground leases, developing housing, or assuming substantial property liability, the Board shall consider forming a separate affiliated nonprofit or subsidiary with independent records, insurance, finances, and governance protections.

Section 19.4 - Charitable Housing Standards.

Housing and land programs shall use written eligibility, affordability, resale, stewardship, conflict, selection, and monitoring standards that further charitable purposes and do not favor insiders.

Section 19.5 - No Informal Property Commitments.

No director, officer, committee, advisor, or volunteer may promise property, housing, tenancy, grants, repairs, ownership, ground leases, or development rights without written Board authority and required legal documentation.

ARTICLE XX - INDEMNIFICATION, INSURANCE, AND EMERGENCY GOVERNANCE

Section 20.1 - Indemnification.

To the fullest extent permitted by Florida law, the corporation may indemnify directors, officers, employees, and agents who act in good faith and in a manner reasonably believed to be in the corporation's best interests, subject to statutory limits and Board-approved procedures.



Section 20.2 - No Protection for Misconduct.

Indemnification shall not protect fraud, willful misconduct, criminal conduct, improper personal benefit, bad faith, reckless disregard, unlawful distributions, or other conduct for which indemnification is prohibited.

Section 20.3 - Insurance.

The Board may obtain directors and officers liability insurance, general liability, professional liability, cyber, property, event, abuse or molestation, workers' compensation, automobile, or other coverage appropriate to the corporation's activities.

Section 20.4 - Emergency Governance.

During a catastrophic emergency in which a quorum cannot readily be assembled, the Board may adopt emergency procedures permitted by Florida law for notice, succession, meeting location, remote participation, temporary authority, and continuity of essential operations. Emergency actions shall be documented and reviewed when normal governance resumes.

ARTICLE XXI - AMENDMENTS, DISSOLUTION, SEVERABILITY, AND ADOPTION

Section 21.1 - Amendment of Bylaws.

These Bylaws may be amended, restated, or repealed by the affirmative vote of two-thirds of the directors then in office at a meeting for which the proposed change was provided at least seven days in advance, or by unanimous written consent. No amendment may conflict with law, the Articles, or Section 501(c)(3).

Section 21.2 - Periodic Review.

The Board shall review these Bylaws at least annually during the first three years and at least every three years thereafter, or sooner when law, programs, funding, Board structure, real-property activity, or operational scale materially changes.

Section 21.3 - Dissolution.

Upon dissolution, after paying or making provision for liabilities, all remaining assets shall be distributed exclusively for one or more exempt purposes within the meaning of Section 501(c)(3), to one or more organizations then recognized as exempt under Section 501(c)(3), or to the federal government or a state or local government for a public purpose. No remaining asset shall be distributed to any director, officer, founder, employee, private individual, private business, or non-exempt organization.

Section 21.4 - Severability.

If any provision of these Bylaws is held invalid or unenforceable, the remaining provisions shall continue in effect to the fullest extent permitted.

Section 21.5 - Electronic Records and Signatures.

Electronic notices, records, signatures, and consents may be used to the extent permitted by law and retained in a reproducible form.

Section 21.6 - Adoption.

These Bylaws become effective when adopted by the Board of Directors and certified by the Secretary. They supersede all prior Bylaw drafts or informal governance rules.



EXHIBIT A - INITIAL SIX-DIRECTOR BOARD STRUCTURE

Board Composition.

The initial Board consists of six voting directors. The Board may assign the following portfolios by resolution without amending these Bylaws: President/Board Chair; Vice President/Vice Chair; Secretary; Treasurer; At-Large/Youth Coordinator Director; and At-Large/Community Development or Program Director. Officer duties remain governed by Article VIII.

Board Roster Fields.

President/Chair: _____ Vice President/Vice Chair: _____
Secretary: _____ Treasurer: _____ Director 5 / Portfolio: _____
Director 6 / Portfolio: _____

EXHIBIT B - BOARD ADOPTION RESOLUTION

Resolution.

RESOLVED, that the Board of Directors of HERITAGE AND OPPORTUNITY ALLIANCE, INC. adopts the foregoing Comprehensive Bylaws as the official Bylaws of the corporation, effective on the date stated below; and further RESOLVED, that the officers are authorized to maintain these Bylaws in the corporate records, implement the required policies and controls, and seek qualified legal or tax review when appropriate.

Adoption Fields.

Date Adopted: _____ Meeting Location or Method: _____ Vote: _____
_____ in favor; _____ opposed; _____ abstained; _____ absent

EXHIBIT C - DIRECTOR SIGNATURES AND SECRETARY CERTIFICATION

Director Signatures.

Director 1: _____ Date: _____ Director 2: _____ Date: _____
Director 3: _____ Date: _____ Director 4: _____ Date: _____
Director 5: _____ Date: _____
Director 6: _____ Date: _____

Secretary Certification.

I certify that the foregoing Bylaws were duly adopted by the Board of Directors of HERITAGE AND OPPORTUNITY ALLIANCE, INC. and remain in effect unless amended or repealed in accordance with their terms. Secretary Name: _____
Secretary Signature: _____ Date: _____



APPENDIX - DRAFTING AUTHORITY AND COMPLIANCE NOTES

Florida Bylaw Authority.

Florida Statutes Section 617.0206 provides that the initial Bylaws are adopted by the Board and may regulate corporate affairs so long as they are consistent with law and the Articles.

Board Size and Meetings.

Florida law requires at least three directors, permits the Bylaws to fix the number, recognizes remote meetings, provides majority quorum rules unless altered, and generally permits unanimous written consent without a meeting.

Conflicts and Records.

Florida law addresses director conflict transactions, prohibits most loans to directors or officers, authorizes Board and advisory committees, and requires minutes and records of Board and committee actions.

Federal Tax-Exempt Requirements.

The IRS requires an organization seeking Section 501(c)(3) recognition to be organized and operated exclusively for exempt purposes; prohibits private inurement and political campaign intervention; limits lobbying; and requires permanent dedication of assets to exempt purposes upon dissolution.

Important Articles Reminder.

Bylaws alone do not correct missing language in filed Articles of Incorporation. HOA should complete any necessary Articles amendment before submitting Form 1023 or Form 1023-EZ.